

PART II.

1. Session and Chapter.	2. Short Title.	3. How far continued.	4. Amending Acts.
(36) 59 & 60 Vict. c. 16.	The Agricultural Rates Act, 1896.	The whole Act.	—
(37) 59 & 60 Vict. c. 37.	The Agricultural Rates, Congested Districts, and Burgh Land Tax Relief (Scotland) Act, 1896.	The whole Act.	—

CHAPTER 22.

An Act to make further provision for the prolongation of the present Parliament, and the postponement of Local Elections. [30th July 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Subsection (1) of section one of the Parliament and Registration Act, 1916, shall have effect as if eight years were substituted therein for five years and eight months ; and section one of the Parliament and Local Elections (No. 2) Act, 1917, is hereby repealed.

Further pro-
longation of
present Parlia-
ment.
5 & 6 Geo. 5.
c. 100.
7 & 8 Geo. 5.
c. 13.

2.—(1) The next statutory elections of county and borough councillors, district councillors, guardians, and parish councillors shall, subject to the limitations hereinafter contained, be postponed, or, in the case of elections already postponed under the Elections and Registration Act, 1915, the Parliament and Local Elections Act, 1916, the Parliament and Local Elections Act, 1917, or the Parliament and Local Elections (No. 2) Act, 1917, further postponed, for a year ; and the term of office of the existing councillors and guardians shall accordingly be extended, or further extended, by one year.

Further post-
ponement of
local elections

5 & 6 Geo. 5.
c. 76.
6 & 7 Geo. 5.
c. 44.
7 & 8 Geo. 5.
c. 50.

This provision shall apply only where the next statutory election (whether a postponed election or not) would take place before the first day of March nineteen hundred and nineteen in Great Britain, and before the fifteenth day of March nineteen hundred and nineteen in Ireland.

(2) Section two of the Elections and Registration Act, 1915, and paragraphs (2) to (10) (inclusive) of the Schedule to the Parliament and Local Elections Act, 1917, subject to the substitution in paragraph (7) of four years for three years as the

period by which the term of office of an alderman of a municipal borough is extended, and except the provisions of paragraph (10) relating to the revision of jurors lists in Ireland, shall be deemed to be incorporated in this section as though they were set out therein, and expressly made applicable to the provisions thereof.

Short title.

3. This Act may be cited as the *Parliament and Local Elections Act, 1918.*

CHAPTER 23.

An Act to limit the right to a jury in certain civil cases, to raise the age for jury service, to amend the Law with respect to the preparation and publication of jury lists, and to enable coroners' inquests in certain cases to be held without a jury. [30th July 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Limitation
of jury trials
in the High
Court.

1. Subject to the provisions of this Act every action, counter-claim, issue, cause, or matter, in the High Court in England requiring to be tried shall be tried by a judge alone without a jury :

Provided that—

- (a) nothing in this section shall affect any power to order a trial by two or more judges or by a judge sitting with assessors, or by an official or special referee with or without assessors, or by an officer of the court; and
- (b) in the case of any action, counter-claim, issue, cause, or matter in which fraud is alleged or in which there is a claim in respect of libel, slander, malicious prosecution, false imprisonment, seduction, or breach of promise of marriage, either party shall on making application for the purpose in accordance with rules of court be entitled as of right to a trial with a jury; and
- (c) if it appears to the court or a judge that any action, counter-claim, cause, or matter or any question or issue therein, is more fit to be tried with a jury than without a jury, the court or a judge may, on an application for the purpose made by any party in accordance with rules of court, order accordingly; and
- (d) nothing in this section shall affect the right of any party under section twenty-eight of the Matrimonial